

25STCV26838 25STCV26838

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Below are tentative rulings on the parties' motions in limine.

Plaintiff's MIL No. 1 to exclude settlement discussions is unopposed as long as the prohibition is mutual. The MIL is granted and neither side may make reference to settlement discussions, including 998 offers, offers to repurchase, and/or mediations.

Plaintiff's MIL No. 2 to exclude evidence that Defendant proposed arbitration is unopposed and is granted.

Plaintiff's MIL No. 3 to exclude evidence relating to attorney's fees and costs is denied. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time. The Court has determined that the probative value of such evidence is not substantially outweighed by the probability that its admission will necessitate undue consumption of time or create substantial danger of undue prejudice, confusing the issues, or misleading the jury. (EV. CODE § 352.) Notwithstanding the denial of this motion in limine, the moving party may renew the objection to the introduction of this evidence at trial, and the Court will rule on the evidentiary objection anew in the context of the other evidence that is presented at trial.

Plaintiff's MIL No. 4 to exclude evidence relating to Plaintiff's application for financing is unopposed so long as it also applies to Defendant's financial condition. The Court grants this motion and also

orders that testimony, evidence, or argument referring or relating to Defendant's financial condition is excluded.

Plaintiff's MIL No. 5 to exclude evidence relating to attorney advertising is granted. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time. The Court has determined that the probative value of such evidence is substantially outweighed by the probability that its admission will necessitate undue consumption of time and create substantial danger of undue prejudice, confusing the issues, and misleading the jury. (EV. CODE § 352.)

Plaintiff's MIL No. 6 to exclude evidence that timely revocation of acceptance was required is granted, as such matters are not relevant to any claim or defense. The Song Beverly Act does not require rejection or revocation of acceptance of a vehicle within a reasonable time or any time at all. Civil Code § 1793.2(d); *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1307.

Plaintiff's MIL No. 7 for an order establishing that statements made by Defendant's dealership personnel are non-hearsay and admissible is denied. Plaintiff's MIL seeks a blanket order admitting evidence of statements by Defendant's personnel. This is not a proper motion in limine insofar as it seeks a pretrial ruling that certain evidence is admissible under all circumstances. As with all evidence, the moving party will have to lay an adequate foundation at trial prior to its admission.

Plaintiff's MIL No. 8 to exclude evidence regarding Defendant's 998 offer is unopposed so long as it also applies to evidence regarding re purchase offers. The MIL is granted and neither side may make reference to settlement discussions, including 998 offers, offers to repurchase, and/or mediations.

Plaintiff's MIL No. 9 to exclude evidence regarding Defendant's third-party dispute resolution process is denied. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time. The Court has determined that the probative value of such evidence is not substantially outweighed by the probability that

its admission will necessitate undue consumption of time or create substantial danger of undue prejudice, confusing the issues, or misleading the jury. (EV. CODE § 352.) Notwithstanding the denial of this motion in limine, the moving party may renew the objection to the introduction of this evidence at trial, and the Court will rule on the evidentiary objection anew in the context of the other evidence that is presented at trial.

Defendant's MIL No. 1 to exclude legal conclusions is denied. Plaintiff can present lay testimony about experiences with the defects in the vehicle. Expert testimony is necessary to explain the nature and extent of the defects. To the extent the expert's opinion extend to ultimate issues about the defects being "substantial," such testimony is admissible under Ev. Code 805.

Defendant's MIL No. 2 to exclude evidence of Plaintiff's subjective expectations regarding the vehicle is denied because Defendant has not identified any specific evidence it intends to exclude and the Court cannot make an order in a vacuum. That said, Plaintiff cannot describe technical defects like an expert, though Plaintiff can describe the nature and extent of the impaired functionality of the vehicle and the impact of that impairment on Plaintiff.

Defendant's MIL No. 3 to exclude evidence and argument regarding the existence of repair orders alone substantially impair the vehicle's value is denied. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time. The Court has determined that the probative value of such evidence is not substantially outweighed by the probability that its admission will necessitate undue consumption of time or create substantial danger of undue prejudice, confusing the issues, or misleading the jury. (EV. CODE § 352.) Notwithstanding the denial of this motion in limine, the moving party may renew the objection to the introduction of this evidence at trial, and the Court will rule on the evidentiary objection anew in the context of the other evidence that is presented at trial.

Defendant's MIL No. 4 to exclude issues presented two or fewer times is denied. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue

consumption of time. The Court has determined that the probative value of such evidence is not substantially outweighed by the probability that its admission will necessitate undue consumption of time or create substantial danger of undue prejudice, confusing the issues, or misleading the jury. (EV. CODE § 352.) Notwithstanding the denial of this motion in limine, the moving party may renew the objection to the introduction of this evidence at trial, and the Court will rule on the evidentiary objection anew in the context of the other evidence that is presented at trial.

Defendant's MIL No. 5 to exclude reference to dealer as agent of manufacturer or distributor is denied. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time.

The Court has determined that the probative value of such evidence is not substantially outweighed by the probability that its admission will necessitate undue consumption of time or create substantial danger of undue prejudice, confusing the issues, or misleading the jury. (EV. CODE § 352.) Notwithstanding the denial of this motion in limine, the moving party may renew the objection to the introduction of this evidence at trial, and the Court will rule on the evidentiary objection anew in the context of the other evidence that is presented at trial.

Defendant's MIL No. 6 to exclude Plaintiff's experts is deferred.

Defendant's MIL No. 7 to exclude evidence of other claims and complaints regarding other vehicles is denied. Defendant does not identify any specific evidence it seeks to exclude and the Court cannot make an order in a vacuum.

Defendant's MIL No. 8 to exclude terms "lemon" and "lemon law" is granted. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time. The Court has determined that the probative value of such evidence is substantially outweighed by the probability that its admission will necessitate undue consumption of time and create substantial danger of undue prejudice, confusing the issues, and misleading the jury. (EV. CODE § 352.)

Defendant's MIL No. 9 to exclude golden rule and reptile theory appeals is granted as follows: The Court admonishes the parties to avoid making arguments that ask the jurors to put themselves in Plaintiff's shoes or to act based on some ill-defined community interests. In closing arguments, it is appropriate for counsel to argue that jurors should use their common sense and experience when evaluating the evidence.

Defendant's MIL No. 10 to exclude reference to Defendant's corporate status is granted. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time. The Court has determined that the probative value of such evidence is substantially outweighed by the probability that its admission will necessitate undue consumption of time and create substantial danger of undue prejudice, confusing the issues, and misleading the jury. (EV. CODE § 352.)

Defendant's MIL No. 11 to exclude pre-argument statement to the jury about law, policy or instructions is denied as it does not seek the exclusion of any evidence and is not a proper MIL.

Defendant's MIL No. 12 to exclude reference to Defendant's employees as "person most knowledgeable" or "person most qualified" is denied as it does not seek the exclusion of any evidence and is not a proper MIL.